

1.

CASE #	CASE NAME	HEARING NAME
CVPS2500579	ALZUBAIDI VS AYALA	DEFENDANT'S MOTION TO COMPEL ABBASI TO PRODUCE HIS 2014 TOYOTA PRIUS IN RESPONSE TO DEMAND FOR INSPECTION OF THE VEHICLE BY WAY OF DEPOSITION SUBPOENA FOR PERSONAL APPEARANCE AND PRODUCTION OF DOCUMENTS AND THINGS; REQUEST FOR ORDER IMPOSING CONTEMPT, FORFEITURE, MONETARY SANCTIONS BY ALEXIS RICARDO AYALA

Tentative Ruling: Under CCP § 2020.220(c), “[p]ersonal service of any deposition subpoena is effective to require all of the following of any deponent who is a resident of California at the time of service . . . (2) Any specified production, inspection, testing, and sampling.” If a nonparty fails to comply with a deposition subpoena, the subpoenaing party can ask the court to compel compliance with the subpoena. (CCP § 2025.480(b).) Before a motion to compel compliance under CCP § 2025.480(b) can be brought, the moving party must meet and confer with the deponent. (CCP § 2025.480(b).) A meet and confer requires a “reasonable and good faith attempt either in **person**, by **telephone** or by **videoconference**, to informally resolution of each issue presented by the motion.” (CCP § 2016.040.) A good faith meet and confer attempt requires more than just an attempt to persuade the objector of the error of his or her ways. It requires counsel to talk the matter over, compare their views, consult, and deliberate. (*Clemente v. Alegre* (2009) 177 Cal.App.4th 1277, 1294.) It requires a serious attempt by the moving party to informally resolve each issue with the responses. (*Id.* at 1293.) The evidence provided by Defendant does not support a good faith meet and confer attempt.

When discovery is sought from a third party, it should be structured in a manner which is least burdensome to them. (See *Calcor Space Facility v. Superior Court* (1997) 53 Cal.App.4th 216, 222.) Abbasi lives in Palm Desert. Based on counsel’s declaration, it appears that Defendant may have originally wanted to inspect Abbasi’s vehicle in Signal Hill, approximately 120 miles away. (Declaration of Dwayne S. Beck, ¶ 10.) Defendant then attempted to get Abbasi to agree to having the vehicle inspected at counsel’s office in Riverside – 68 miles away from Abbasi’s home, with compensation of \$150. (*Id.*) When Abbasi refused, Defendant sent the deposition subpoena for the Riverside location and threatened to take him to court and obtain an order and sanctions, if he did not produce the vehicle. (*Id.* at ¶ 8.) Defendant at some point in time offered to have the inspection in Redlands. (*Id.* at ¶ 11.) However, that’s still approximately 58 miles away from Abbasi’s home. None of these locations are reasonably located near Abbasi. It appears that Abbasi would have to travel for at least an hour each way to accommodate Defendant’s request. When Abbasi did not appear, Defendant’s attorney filed this motion the next day with no further attempt to resolve this issue. Defendant provides no reason why the vehicle could not have been inspected in the city that Abbasi lived in.

Sanctions are not warranted under CCP § 2025.480(j) if imposing them would be unjust or if the opposing party acted with substantial justification. Based on the facts (even without the improper meet and confer), imposing sanctions is unjust and Abbasi’s refusal to bring the vehicle to Signal Hill or Riverside does not merit imposing them. Defendant

asserts that sanctions under CCP § 1992 should be awarded. However, said sanctions can only be obtained by filing an independent civil action. (*New York Times Co. v. Superior Court* (1990) 51 Cal.3d 453, 464.)

Motion for Order Compelling Firdous Jamal Abbasi to Produce His 2014 Toyota Prius is MOOT.

Request for Sanctions DENIED.

Case Management Conference continued to 7.22.26, Plaintiff's counsel ordered to file new and updated Case Management Statement 10 days in advance of hearing regarding status of Discovery/ Alternative Dispute Resolution/ compliance of CRC 3.724 & LR 3218. Failure to do so will result in sanctions. Defendant is not ordered to submit an updated Case Management statement.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2504351	MCDONALD, AN INDIVIDUAL, VS WALTER FAMILY PARTNERSHIP	MOTION TO BE RELIEVED AS COUNSEL AS TO ELIZABETH MCDONALD, AN INDIVIDUAL

Tentative Ruling:

Motion to be Relieved as Counsel for Elizabeth McDonald GRANTED.

Attorneys D. Aaron Brock and Brigid O'Reilly are relieved as counsel of record for Plaintiff, effective upon the filing of the proof of service of the signed court order upon the client.

Trial Setting Conference is confirmed for 7.09.26, and an OSC re status of representation for Plaintiff Elizabeth McDonald shall be set for the same date.

The court notes there are three discovery motions by Defendant scheduled for 8.07.26. For now, that date shall remain, with the understanding that date will likely be modified following the TSC/OSC on 7.09.26.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2507742	BERRY VS DIETERLE	MOTION TO SET ASIDE DEFAULT JUDGMENT ON 1ST AMENDED COMPLAINT OF BERRY DAWSON BY DAVID DIETERLE, JACQUELINE DIETERLE, WILLIAM L. DIETERLE, TRUSTEE OF THE DIETERLE FAMILY TRUST

Tentative Ruling: An application for mandatory relief based on an attorney affidavit of fault must be made "no more than six months after entry of judgment." (C.C.P. §473(b).) Unlike the excusable neglect provisions, there need be no showing of diligence in seeking relief short of the six-month time limit. (*Metropolitan Service Corp. v. Casa de Palms, Ltd.* (1995) 31 Cal.App.4th 1481, 1488.) The six-month period starts with entry of the default